

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Eric Rigie	Team: Squad #1	CCRB Case #: 201507866	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 09/15/2015 5:22 PM	Location of Incident: Tremont Avenue D Line station	Precinct: 46	18 Mo. SOL 3/15/2017	EO SOL 3/15/2017	
Date/Time CV Reported Wed, 09/16/2015 6:03 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Wed, 09/16/2015 6:03 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Tulio Camejo	16515	932401	TB DT11

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Dealip Kundu	02736	954035	TB DT11
2. POM Jimmy Cancela	08132	920079	TB DT11

Officer(s)	Allegation	Investigator Recommendation
A.POM Tulio Camejo	Abuse: PO Tulio Camejo interfered with § 87(2)(b) s use of a recording device.	
B.POM Tulio Camejo	Abuse: PO Tulio Camejo refused to provide his name and shield number to § 87(2)(b)	

Case Summary

On September 15, 2015, at approximately 5:22 p.m., § 87(2)(b) and § 87(2)(b) were filming a police interaction inside of the Tremont Avenue D Line Subway Station. Inside the station, PO Dealip Kundu, of Transit District 11, was guarding § 87(2)(b) and an unknown male, who had hopped a turnstile. § 87(2)(b) and § 87(2)(b) are members of an activist group § 87(2)(b).

§ 87(2)(b) The unknown male was released with a summons, but § 87(2)(b) was subsequently arrested for an open warrant. PO Tulio Camejo, and PO Jimmy Cancela, also from TD 11, arrived on the scene and escorted § 87(2)(b) towards the exit stairs with PO Kundu. § 87(2)(b) followed the officers and § 87(2)(b) while § 87(2)(b) remained behind to speak to the second male. In the hallway leading to the stairs, PO Camejo told § 87(2)(b) “Stop right there please” and held up his hand palm out to block § 87(2)(b) from walking further. § 87(2)(b) protested that PO Camejo let other individuals walk by him and that the officer was obstructing his recording and violating his first amendment rights. PO Camejo continued to tell § 87(2)(b) to stop and refused to let him follow § 87(2)(b) and the other officers (**Allegation A**). § 87(2)(b) called for § 87(2)(b) and PO Camejo then told § 87(2)(b) to have a nice day, turned, and walked towards the exit stairs. § 87(2)(b) followed PO Camejo and asked for his name and shield number. PO Camejo replied, “You got it on the camera” and continues to walk away. § 87(2)(b) told PO Camejo that he wanted the officer to provide the information verbally, as required by the Patrol Guide. PO Camejo did not respond and continued to walk up the stairs (**Allegation B**). § 87(2)(b) and § 87(2)(b) followed him up to the street. On the street, § 87(2)(b) observed PO Camejo’s shield# 16515 and read the shield number aloud. PO Camejo then left the scene in an RMP. Neither § 87(2)(b) nor § 87(2)(b) was summonsed or arrested.

§ 87(2)(b) provided two camcorder videos of this incident, one of which captured all the allegations. The second video showed PO Kundu guarding § 87(2)(b) and the unknown male, but did not show PO Camejo or any FADO allegations. Additionally, three short MTA security videos were obtained of this incident, which showed § 87(2)(b) following the officers escorting § 87(2)(b) but no FADO allegations.

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) accepted mediation for this case, which was sent to mediation on September 22, 2015. § 87(2)(b) changed his mind and rejected mediation on November 24, 2015 § 87(2)(b) (see IA’s pertaining to mediation).
- On December 10, 2015, a FOIL request to the Office of the Comptroller confirmed that § 87(2)(b) filed no notices of claim for this incident (01 Board Review).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Civilian and Officer CCRB Histories

- [§ 87(2)(b)] has been involved with 11 other CCRB cases, [§ 87(2)(b)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- PO Camejo has been a member of the NYPD for 12 years and has five other CCRB cases involving five allegations with no substantiated allegations [§ 87(2)(g)]
[REDACTED]

Findings and Recommendations

Allegations not pleaded

Abuse of Authority: A stop allegation is not being pleaded in this case. According to People v. Bora, 83 N.Y.2d 531 (1994) (08 Board Review), the Court held that “seizure” of a person constituting a stop occurs when an officer’s conduct was a significant limitation on a person’s freedom. Other cases, such as People v. Sincere Pinckney, 188 Misc. 2d 680 (Sup. Ct., Bronx Co., June 4, 2001) (09 Board Review), have found that a significant factor in whether or not there was such a “significant limitation” of freedom was whether the individual attempted to leave or was prevented from leaving.

[§ 87(2)(b)] was following the officers while recording at a reasonable distance towards a subway exit when PO Camejo stopped in front of him, placed his hand in front of [§ 87(2)(b)] at chest level and instructed him several times to stop, thereby preventing [§ 87(2)(b)] from continuing down the hallway to further record the officers. [§ 87(2)(b)] never tried to walk in another direction or walk away from PO Camejo, and never appeared to be touched or prevented from leaving. Instead, [§ 87(2)(b)] was merely prevented from walking in that particular direction for a period of time. [§ 87(2)(g)]
[REDACTED]

[§ 87(2)(g)]
[REDACTED]
[REDACTED]

§ 87(2)(g)

Allegation A – Abuse of Authority: PO Tulio Camejo interfered with § 87(2)(b)'s use of a recording device.

§ 87(2)(b)'s video of the incident shows § 87(2)(b) following PO Camejo, PO Kundu, and PO Cancela, from a distance of at least 20 feet, as they escort § 87(2)(b) out of the emergency exit and down a hallway toward the exit stairs. At 01:03, PO Camejo turned around and faces § 87(2)(b) with his hands on his equipment belt. § 87(2)(b) zooms out to show that he is approximately 30 feet from § 87(2)(b) and the other officers. § 87(2)(b) is heard asking PO Camejo how he is doing and continues to walk forward. At 01:05, PO Camejo holds out his palm to § 87(2)(b) and says "Stop right there please." § 87(2)(b) asks, "Why is that? I'm within a reasonable distance man." PO Camejo replies, "I understand. Stop right there. It's simple." § 87(2)(b) says, "So now you're violating my first amendment rights." PO Camejo replies, "No I'm not. I'm telling you to stop." § 87(2)(b) says, "But I'm within a reasonable distance right now and you're right now blocking me from recording." PO Camejo replies, "No I'm not, I'm telling you to stop right there. That's all I'm telling you to do." While this conversation is going on, multiple other passengers are walking past PO Camejo in the direction that § 87(2)(b) was trying to go. At 01:20, § 87(2)(b) says, "Yea but he's all the way up the stairs..." PO Camejo replies, "Sir, just stop right there." § 87(2)(b) pans his camera to show a black female in a yellow shirt walk by the officer and asks, "But, everyone else is walking by. Why aren't you stopping them?" § 87(2)(b) pans his camera back to PO Camejo who says, "I'm stopping you." § 87(2)(b) is then heard yelling, "Yo, § 87(2)(b) Come here!" At 01:30, PO Camejo looks behind him and then says to § 87(2)(b) "And you listened. That's a good thing. Thank you very much." The officer then turns around and walks toward the stairs (see Snagit footage linked below, 00:41 length).



201507866_20151211_1057_DM.mp4

§ 87(2)(b) said that he believed PO Camejo was detaining him and not merely preventing him from walking forward. § 87(2)(b) believed that PO Camejo took these actions in retaliation for § 87(2)(b)'s filming. § 87(2)(b) never tried to walk away in any other directions, because he wanted to continue following the officers (04 Board Review).

PO Camejo denied that § 87(2)(b) was ever detained and said that he was merely preventing § 87(2)(b) from following the officers until § 87(2)(b) was safely escorted out of the stationhouse. PO Camejo took these actions, because § 87(2)(b) was following the officers from a distance of approximately six feet and kept getting closer and closer. PO Camejo also said that § 87(2)(b) was shouting at the officers as he walked. PO Camejo added that he did not feel safe having an individual follow behind him with a camera. PO Camejo explained that § 87(2)(b) might have been focused on his camera and not paying attention to where he walked. § 87(2)(b) then might have tripped into PO Camejo or § 87(2)(b) might have tripped and fell on PO Camejo, who would then fall onto § 87(2)(b) (05 Board Review).

According to a Finest Message dated August 6, 2014, officers are not permitted to interfere with an individual's use of recording devices to record police interactions. Officers are permitted to advise individuals to not get too close and may take action only if the individual interferes with the operation or with the safety of officers or the public. Mere recording does not constitute interference in and of itself (06 Board Review).

§ 87(2)(g)
[REDACTED]

Allegation B –Abuse of Authority: PO Tulio Camejo refused to provide his name and shield number to § 87(2)(b)

In § 87(2)(b)'s video of the incident, § 87(2)(b) follows behind PO Camejo and asks, "Yea what's your name and badge number. I'm gonna write you up for that. Can I get your name and badge number?" PO Camejo replies, "You got it on the camera" and continues to walk. § 87(2)(b) then says, "No, I want to hear it from you. Your patrol guide tells you to tell me that. So you're not gonna give me your name and badge number?" PO Camejo remains unresponsive and walks upstairs towards the street with § 87(2)(b) following. § 87(2)(b) is heard explaining the interaction to § 87(2)(b) who tells him to get PO Camejo's name and shield number. § 87(2)(b) tells § 87(2)(b) that PO Camejo refused and § 87(2)(b) replies, "As long as we got his face, we can find him. Because he's in violation of his patrol guide if he doesn't give you his identification." At 02:19, PO Camejo is standing outside of an RMP and looks back towards § 87(2)(b). § 87(2)(b) is heard saying, "16515," § 87(2)(b) says to § 87(2)(b) "Alright, got it." PO Camejo looks at § 87(2)(b) and asks, "Got it?" and then looks away. At 02:53 PO Camejo gets into the passenger seat of an RMP and the video cuts out shortly afterward (see Snagit footage linked below, 00:57 length).



201507866_20151211_1057A_DM.mp4

§ 87(2)(b) said that when PO Camejo prevented him from walking forward, he was filming PO Camejo from approximately two feet away. However, he was not specifically focused on filming

PO Camejo's name plate or shield during the incident and was not sure if he captured it. Thus, he followed PO Camejo and requested PO Camejo's name and shield number to ensure that he had it. § 87(2)(b) said that during the incident, he did not obtain PO Camejo's shield number until § 87(2)(b) yelled it out upstairs. § 87(2)(b) later was able to obtain PO Camejo's name from his video, but he did not know that he captured it during the incident (04 Board Review).

PO Camejo acknowledged hearing § 87(2)(b) request his name and shield number, but did not provide it verbally, because § 87(2)(b) was yelling so much that he did not have a chance. PO Camejo also assumed that § 87(2)(b) captured his name and shield number on his video, because PO Camejo made no attempt to cover his shield or hide it. PO Camejo added that when § 87(2)(b) yelled out his shield number upstairs, he believed that § 87(2)(b) had the information that he needed (05 Board Review).

According to P.G. 203-09, officers must clearly state their name, rank, shield, and command or otherwise provide them to anyone who requests them to do so (07 Board Review).

§ 87(2)(g)

[REDACTED]

Squad: 1

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

